

Court No. - 21

Case :- WRIT - C No. - 18188 of 2017

Petitioner :- Murli Manohar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Santosh Kumar Jaiswal

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble V.K. Shukla,J.

Hon'ble Mahesh Chandra Tripathi,J.

Murli Manohar is before this Court for a direction to the third respondent i.e. Executive Engineer, Electricity Distribution Division-II, Ghazipur to prepare a fresh electricity bill of the petitioner in respect of connection no.923 in accordance with order and decree dated 3.9.1985 passed by the court below and for a further direction to third respondent to connect the electricity connection of the petitioner forthwith.

On the matter being taken up today, Shri R.S. Umrao appearing for second and third respondent has stated before us that pursuant to the decree dated 3.9.1985 the revised bill in question has been prepared and has been served upon him but the amount in question has not at all been paid.

Shri Santosh Kumar Jaiswal appearing for the petitioner on the other hand contended that he is pressing the execution case and has proceeded to deposit the amount in question.

Once such is the factual situation, that has been stated before us, then as far as we are concerned, we cannot come for rescue and reprieve of the petitioner but in case fresh bill in dispute is being sought to be raised by the petitioner, then he can pursue the remedy as is provided in Electricity Act as well as Electricity Supply Code, 2005.

With this, the writ petition stands **disposed of**.

Order Date :- 28.4.2017

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